SERVICE AGREEMENT

This Service Agreement ("Agreement") is made and entered into on this 15th day of January, 2024 ("Effective Date"), by and between:

PARTY A: Acme Technologies Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at 123 Tech Park, Whitefield, Bangalore, Karnataka - 560066, India (hereinafter referred to as the "Company")

AND

PARTY B: XYZ Software Solutions Limited, a company incorporated under the Companies Act, 2013, having its registered office at 456 Business Tower, Cyber City, Gurgaon, Haryana - 122002, India (hereinafter referred to as the "Service Provider")

(The Company and Service Provider are hereinafter collectively referred to as the "Parties" and individually as a "Party")

WHEREAS the Company desires to engage the Service Provider to provide software development services, and the Service Provider agrees to provide such services on the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. SCOPE OF SERVICES

1.1 The Service Provider shall provide software development, testing, and maintenance services as detailed in Schedule A attached hereto.

1.2 The Service Provider shall dedicate a team of five (5) full-time software engineers for the duration of this Agreement.

2. TERM AND TERMINATION

2.1 This Agreement shall commence on the Effective Date and shall continue for a period of twenty-four (24) months unless terminated earlier in accordance with the provisions of this Agreement.

2.2 Either Party may terminate this Agreement by providing ninety (90) days prior written notice to the other Party.

2.3 Upon termination, the Service Provider shall deliver all work product, documentation, and materials to the Company within fifteen (15) days.

3. COMPENSATION AND PAYMENT TERMS

3.1 The Company shall pay the Service Provider a monthly fee of Rupees Five Lakh Only (₹5,00,000/-) plus applicable Goods and Services Tax (GST) at 18%.

3.2 Invoices shall be submitted by the Service Provider on the last day of each month.

3.3 Payment shall be made by the Company within forty-five (45) days of receipt of a valid invoice.

3.4 Late payments shall attract interest at the rate of 2% per month.

4. INTELLECTUAL PROPERTY RIGHTS

4.1 All work product, including but not limited to software code, documentation, designs, and inventions created by the Service Provider during the term of this Agreement shall be the exclusive property of the Company.

4.2 The Service Provider hereby assigns all right, title, and interest in such work product to the Company.

5. CONFIDENTIALITY

5.1 Each Party agrees to maintain the confidentiality of all Confidential Information received from the other Party.

5.2 "Confidential Information" means any information disclosed by one Party to the other Party, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential.

5.3 The confidentiality obligations shall survive for a period of five (5) years from the date of disclosure.

6. LIABILITY AND INDEMNIFICATION

6.1 The Service Provider's total liability under this Agreement shall be limited to an amount equal to the fees paid by the Company to the Service Provider in the twelve (12) months preceding the event giving rise to the liability.

6.2 The Service Provider shall indemnify and hold harmless the Company from any claims arising from the Service Provider's breach of this Agreement or negligent acts.

7. WARRANTIES

7.1 The Service Provider warrants that: (a) It has the right and authority to enter into this Agreement (b) The services will be performed in a professional and workmanlike manner (c) The work product will not infringe any third-party intellectual property rights

8. DISPUTE RESOLUTION

8.1 Any disputes arising out of or in connection with this Agreement shall first be attempted to be resolved through good faith negotiations between the Parties.

8.2 If the dispute cannot be resolved within thirty (30) days, the matter shall be referred to arbitration in accordance with the Arbitration and Conciliation Act, 1996.

8.3 The seat of arbitration shall be Bangalore, India, and the language shall be English.

8.4 The arbitral award shall be final and binding on the Parties.

9. FORCE MAJEURE

9.1 Neither Party shall be liable for any failure or delay in performance under this Agreement due to circumstances beyond its reasonable control, including but not limited to acts of God, war, terrorism, pandemic, government orders, or natural disasters.

10. GENERAL PROVISIONS

10.1 This Agreement shall be governed by and construed in accordance with the laws of India.

10.2 This Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements and understandings.

10.3 No modification or amendment to this Agreement shall be effective unless in writing and signed by both Parties.

10.4 If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

10.5 All notices under this Agreement shall be in writing and sent to the addresses mentioned above.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

FOR ACME TECHNOLOGIES PRIVATE LIMITED

Authorized Signatory Name: Rajesh Kumar Designation: Chief Executive Officer Date: January 15, 2024

FOR XYZ SOFTWARE SOLUTIONS LIMITED

Authorized Signatory Name: Priya Sharma Designation: Managing Director Date: January 15, 2024

Contact Information: Company: contact@acmetech.com, +91-80-12345678 Service Provider: info@xyzsoftware.com, +91-124-9876543